AMENDMENT AND BASIC STRUCTURE

CONSTITUTIONAL CHANGE: FLEXIBLE ROUTES → ARTICLE 368 PROCEDURE: SEPARATE → FEDERAL RATIFICATION: THE EXACT → FROM SHANKARI PRASAD (1951) → BASIC-STRUCTURE ELEMENTS: NON-EXHAUSTIVE AND → NINTH SCHEDULE: INSERTION IS

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

● PRIMARY CORE FLOW ● SUBORDINATE EXTRA ● APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artifacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • source generation g8 and all prior artifacts unchanged

00

STAGE 00 — CONSTITUTIONAL CHANGE: FLEXIBLE ROUTES, ENTRENCHED IDENTITY

CONSTITUTIONAL CHANGE · FLEXIBLE ROUTES, ENTRENCHED IDENTITY · SIMPLE MAJORITY OUTSIDE ARTICLE 368 · +/− ORDINARY LEGISLATIVE POWER; LEGALLY NOT AN ARTICLE 368 · ARTICLE 368 SPECIAL MAJORITY · +− MAJORITY OF TOTAL MEMBERSHIP OF EACH HOUSE · +−− AT LEAST TWO-THIRDS OF MEMBERS PRESENT AND VOTING · SPECIAL MAJORITY + RATIFICATION BY AT LEAST HALF OF STATES

CONSTITUTIONAL BASIS / ARTICLE

- CONSTITUTIONAL CHANGE
- SIMPLE MAJORITY OUTSIDE ARTICLE 368
- +− ordinary legislative power; legally not an Article 368 amendment
- ARTICLE 368 SPECIAL MAJORITY

POWER / PROCEDURE

- +− majority of total membership of each House
- +−− at least two-thirds of members present and voting
- SPECIAL MAJORITY + RATIFICATION BY AT LEAST HALF OF STATES only for the exact federal proviso subjects
- POWER DISTINCTION ordinary legislative power → changes law within constitutional competence

CHECK / LIMIT

- constituent power → changes constitutional text by addition, variation or repeal
- IDENTITY LIMIT
- Parliament may amend every provision, but cannot destroy the Constitution's basic structure.
- MUST REMEMBER: Article 368 constituent power, the dual special majority, the exact federal

FEDERAL / RIGHTS IMPACT

- proviso list, mandatory assent, no joint sitting and simple-majority changes outside Article
- 368 must precede the basic-structure doctrine.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: MUST REMEMBER: Article 368 constituent power, the dual special majority, the exact federal proviso list, mandatory assent, no joint sitting and simple-majority changes outside Article.

01

STAGE 01 — ARTICLE 368 PROCEDURE: SEPARATE HOUSES, NO SHORTCUTS

ARTICLE 368 PROCEDURE · SEPARATE HOUSES, NO SHORTCUTS · AMENDMENT BILL MAY ORIGINATE IN EITHER HOUSE OF PARLIAMENT · EACH HOUSE PASSES SEPARATELY MAJORITY OF TOTAL MEMBERSHIP TWO-THIRDS · NO JOINT SITTING · FAILURE IN EITHER HOUSE ENDS THE BILL · STATE RATIFICATION, IF PROVISO APPLIES RESOLUTIONS BY AT LEAST · PRESIDENT SHALL ASSENT

AMENDMENT BILL may originate in either House of Parliament may be introduced → by a minister or private member no prior Presidential recommendation is required

EACH HOUSE PASSES SEPARATELY majority of total membership two-thirds of members → present and voting abstentions reduce present-and-voting denominator, not total membership

NO JOINT SITTING → failure in either House ends the Bill

CONSTITUTIONAL BASIS / ARTICLE

- AMENDMENT BILL may originate in either House of Parliament may be introduced
- by a minister or private member no prior Presidential recommendation is required

POWER / PROCEDURE

- EACH HOUSE PASSES SEPARATELY majority of total membership two-thirds of members
- present and voting abstentions reduce present-and-voting denominator, not total membership

CHECK / LIMIT

- NO JOINT SITTING → failure in either House ends the Bill
- STATE RATIFICATION, IF PROVISO APPLIES resolutions by at least half of State legislatures no time limit in Article 368; States cannot amend the Bill

FEDERAL / RIGHTS IMPACT

- PRESIDENT SHALL ASSENT → Constitution stands amended
- 2026 defeated Bill: total-membership limb passed; two-thirds limb failed.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 2026 defeated Bill: total-membership limb passed; two-thirds limb failed.

02

STAGE 02 — FEDERAL RATIFICATION: THE EXACT ARTICLE 368 PROVISO MAP

FEDERAL RATIFICATION · THE EXACT ARTICLE 368 PROVISO MAP · RATIFICATION BY AT LEAST HALF OF STATES IS REQUIRED · ARTICLES 54 AND 55 · UNION AND STATE EXECUTIVE POWER · ARTICLES 73 AND 162 · SUPREME COURT AND HIGH COURTS · CHAPTER IV OF PART V; CHAPTER V OF PART

RATIFICATION BY AT LEAST HALF OF STATES IS REQUIRED FOR CHANGE TO election of the

Union and State executive power: Articles 73 and 162 → Supreme Court and High Courts: Chapter IV of Part V → Chapter V of Part VI distribution of legislative powers: Chapter I of Part XI any

CONSTITUTIONAL BASIS / ARTICLE

- RATIFICATION BY AT LEAST HALF OF STATES IS REQUIRED FOR CHANGE TO election of the President: Articles 54 and 55
- Union and State executive power: Articles 73 and 162

POWER / PROCEDURE

- Supreme Court and High Courts: Chapter IV of Part V
- Chapter V of Part VI distribution of legislative powers: Chapter I of Part XI any of the Lists

CHECK / LIMIT

- Article 368 itself
- NOT THE RULE every amendment with federal consequences every change concerning a Governor consent of every State

FEDERAL / RIGHTS IMPACT

- STATE ROLE ratify or refuse the passed text → no initiation, amendment or joint conference power.
- RATIFICATION BY AT LEAST HALF OF STATES IS REQUIRED FOR CHANGE TO election of the President: Articles 54 and 55

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: NOT THE RULE every amendment with federal consequences every change concerning a Governor consent of every State.

03

STAGE 03 — FROM SHANKARI PRASAD (1951) TO MINERVA MILLS (1980): THE CORE DOCTRINE CHAIN

FROM SHANKARI PRASAD (1951) TO MINERVA MILLS (1980) · THE CORE DOCTRINE CHAIN · SHANKARI PRASAD (1951) · AMENDMENT IS NOT ARTICLE 13 "LAW"; FR MAY BE · SAJJAN SINGH (1964) · AMENDABILITY REAFFIRMED: REPORTED IN 1965 SCR · I.C. GOLAKNATH (1967) · PARLIAMENT CANNOT AMEND FUNDAMENTAL RIGHTS

Shankari Prasad (1951) → amendment is not Article 13 "law"; FR may be amended → Sajjan Singh (1964) → amendability reaffirmed; reported in 1965 SCR → I.C. GOLAKNATH (1967) → Parliament cannot amend Fundamental Rights → 1971 24TH AMENDMENT → constituent power and mandatory assent affirmed → 1971 25TH AMENDMENT → Article 31C and property-related changes

CONSTITUTIONAL BASIS / ARTICLE

- SHANKARI PRASAD (1951) → amendment is not Article 13 "law"; FR may be amended
- Sajjan Singh (1964) → amendability reaffirmed; reported in 1965 SCR
- I.C. GOLAKNATH (1967) → Parliament cannot amend Fundamental Rights

POWER / PROCEDURE

- 1971 24TH AMENDMENT → constituent power and mandatory assent affirmed
- 1971 25TH AMENDMENT → Article 31C and property-related changes
- KESAVANANDA BHARATI (1973) → every provision amendable; basic structure cannot be damaged

CHECK / LIMIT

- INDIRA NEHRU GANDHI V. RAJ NARAIN (1975) → free and fair elections / judicial review protect democracy
- 1976 42ND AMENDMENT → attempted unlimited amending power
- MINERVA MILLS (1980) → limited amending power and FR-DPSP harmony protected

FEDERAL / RIGHTS IMPACT

- Waman Rao (1980) → cut-off fixed; reported in 1981 SCR
- I.R. COELHO (2007) → post-cut-off insertions face basic-structure impact review
- FORMULA: amend the Constitution → do not destroy its constitutional identity.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: FORMULA: amend the Constitution → do not destroy its constitutional identity.

04

STAGE 04 — BASIC-STRUCTURE ELEMENTS: NON-EXHAUSTIVE AND CASE-ATTRIBUTED

BASIC-STRUCTURE ELEMENTS · NON-EXHAUSTIVE AND CASE-ATTRIBUTED · BASIC STRUCTURE IS A JUDICIAL DOCTRINE, NOT A CLOSED · METHOD IDENTIFY THE AMENDMENT · IDENTIFY THE PROTECTED FEATURE · PROVE DAMAGE, NOT POLICY DISLIKE · KESAVANANDA BHARATI (1973) DID NOT SUPPLY ONE UNANIMOUS, EXHAUSTIVE

CONSTITUTIONAL BASIS / ARTICLE

- BASIC STRUCTURE IS A JUDICIAL DOCTRINE, NOT A CLOSED CONSTITUTIONAL LIST supremacy of the
- Constitution republican and democratic government secularism federalism separation of powers rule of law judicial

POWER / PROCEDURE

- review independence of the judiciary free and fair elections dignity, liberty and equality within
- the rights architecture harmony and balance between Fundamental Rights and DPSP limited amending power

CHECK / LIMIT

- METHOD identify the amendment → identify the protected feature → prove damage, not policy dislike
- TRAP: Kesavananda Bharati (1973) did not supply one unanimous, exhaustive catalogue.

FEDERAL / RIGHTS IMPACT

- BASIC STRUCTURE IS A JUDICIAL DOCTRINE, NOT A CLOSED CONSTITUTIONAL LIST supremacy of the
- Constitution republican and democratic government secularism federalism separation of powers rule of law judicial

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Kesavananda Bharati (1973) did not supply one unanimous, exhaustive catalogue.

05

STAGE 05 — NINTH SCHEDULE: INSERTION IS NOT IMMUNITY AFTER THE 1973 CUT-OFF

NINTH SCHEDULE · INSERTION IS NOT IMMUNITY AFTER THE 1973 CUT-OFF · FIRST AMENDMENT, 1951 · ARTICLE 31B + NINTH SCHEDULE PROTECT LISTED LAWS FROM · WAMAN RAO (1980) · 24 APRIL 1973 BECOMES THE CONTROLLING CUT-OFF · I.R. COELHO (2007) POST-CUT-OFF INSERTIONS ARE REVIEWABLE COURT TESTS · OUTCOME REVIEWABLE

FIRST AMENDMENT, 1951 → Article 31B + Ninth Schedule protect listed laws from specified rights challenge → Waman Rao (1980) → 24 April 1973 becomes the controlling cut-off → I.R. COELHO (2007) post-cut-off insertions are reviewable court tests impact on Part III rights forming

CONSTITUTIONAL BASIS / ARTICLE

- FIRST AMENDMENT, 1951
- Article 31B + Ninth Schedule protect listed laws from specified rights challenge
- Waman Rao (1980)
- 24 April 1973 becomes the controlling cut-off

POWER / PROCEDURE

- I.R. COELHO (2007) post-cut-off insertions are reviewable court tests impact on Part III rights forming part of basic structure
- OUTCOME reviewable != automatically invalid listed != permanently immune pre-cut-off != beyond every constitutional question
- ANSWER TEST
- 1 identify insertion date

CHECK / LIMIT

- 2 identify affected right / basic feature
- 3 examine actual constitutional damage
- 4 state the remedy narrowly.
- CLOSE DISTINCTION: Case propositions must remain chronological and distinct: Shankari Prasad (1951)

FEDERAL / RIGHTS IMPACT

- (1951), Sajjan Singh (1964), Golak Nath, the 24th Amendment, Kesavananda Bharati (1973).
- Indira Nehru Gandhi v. Raj Narain (1975); Minerva Mills (1980), Waman Rao (1980), Bommai,
- Coelho, NJAC and Anjum Kadari (2024).

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Indira Nehru Gandhi v. Raj Narain (1975), Minerva Mills (1980), Waman Rao (1980), Bommai,.

06

STAGE 06 — THE ANJUM KADARI (2024) BOUNDARY: AMENDMENTS VERSUS ORDINARY STATUTES

THE ANJUM KADARI (2024) BOUNDARY · AMENDMENTS VERSUS ORDINARY STATUTES · CONSTITUTIONAL AMENDMENT DIRECTLY TESTED AGAINST BASIC STRUCTURE UNDER ARTICLE · ORDINARY STATUTE CANNOT BE INVALIDATED ONLY BECAUSE IT OFFENDS · LEGISLATIVE INCOMPETENCE VIOLATION OF PART III ANOTHER CONCRETE CONSTITUTIONAL · ANJUM KADARI (2024) INSC 831 SUPPLIES THE CURRENT TECHNICAL · EXAM CORRECTION WRITE "VIOLATES ARTICLE X EMBODYING THE FEATURE"

CONSTITUTIONAL AMENDMENT directly tested against basic structure under Article 368 doctrine

ORDINARY STATUTE cannot be invalidated only because it offends an undefined basic feature invalidity must → legislative incompetence violation of Part III another concrete constitutional provision → ANJUM KADARI (2024) INSC 831 supplies the current technical boundary basic features may guide interpretation

CONSTITUTIONAL BASIS / ARTICLE

- CONSTITUTIONAL AMENDMENT directly tested against basic structure under Article 368 doctrine
- ORDINARY STATUTE cannot be invalidated only because it offends an undefined basic feature invalidity must be traced to

POWER / PROCEDURE

- legislative incompetence violation of Part III another concrete constitutional provision
- ANJUM KADARI (2024) INSC 831 supplies the current technical boundary basic features may guide interpretation

CHECK / LIMIT

- and cumulative constitutional reading they do not become a free-standing super-Article against ordinary legislation
- EXAM CORRECTION write "violates Article X embodying the feature", not merely "violates basic structure".

FEDERAL / RIGHTS IMPACT

- CONSTITUTIONAL AMENDMENT directly tested against basic structure under Article 368 doctrine
- ORDINARY STATUTE cannot be invalidated only because it offends an undefined basic feature invalidity must be traced to

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: EXAM CORRECTION write "violates Article X embodying the feature", not merely "violates basic structure".

07

STAGE 07 — CURRENT EVIDENCE: DEFEATED PROPOSAL VERSUS COMMENCED FRAMEWORK

CURRENT EVIDENCE · DEFEATED PROPOSAL VERSUS COMMENCED FRAMEWORK · 131ST AMENDMENT BILL, 2026 INTRODUCED 16 APRIL; NEGATIVED 17 · 298 AYES · 230 NOES · 528 PRESENT AND VOTING PROPOSED 850 CEILING NEVER BECAME · 106TH AMENDMENT · S.O. 1922(E), 16 APRIL 2026 COMMENCED THE FRAMEWORK

CONSTITUTIONAL BASIS / ARTICLE

- 131ST AMENDMENT BILL 2026 introduced 16 April; negatived 17 April
- 298 ayes / 230 noes / 528 present and voting proposed 850 ceiling never became law proves both Article 368 majority limbs must pass

POWER / PROCEDURE

- 106TH AMENDMENT
- S.O. 1922(E), 16 April 2026 commenced the framework

CHECK / LIMIT

- Article 334A still requires publication of relevant first-post-commencement census figures
- delimitation for that purpose must follow commenced != operational reservation

FEDERAL / RIGHTS IMPACT

- STATUS RULE date + source + legal stage → no proposal presented as law.
- 131ST AMENDMENT BILL, 2026 introduced 16 April; negatived 17 April

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: STATUS RULE date + source + legal stage → no proposal presented as law.

08

STAGE 08 — DOCTRINE EVALUATION: GUARDIAN OF IDENTITY OR JUDICIAL SUPREMACY?

DOCTRINE EVALUATION · GUARDIAN OF IDENTITY OR JUDICIAL SUPREMACY? · CRITICISM DOCTRINE IS JUDICIALLY INFERRED AND NON-EXHAUSTIVE UNELECTED JUDGES · ARTICLE 368 IS A CONSTITUTION-CREATED, LIMITED POWER DEMOCRACY INCLUDES · MINERVA MILLS (1980) · LIMITED POWER CANNOT MAKE ITSELF UNLIMITED · DISCIPLINED REVIEW TEXTUAL FOUNDATION · SETTLED PRECEDENT

CONSTITUTIONAL BASIS / ARTICLE

- CRITICISM doctrine is judicially inferred and non-exhaustive unelected judges review elected super-majorities open-ended features can create uncertainty
- Article 368 is a Constitution-created, limited power democracy includes future elections, rights, federal voice and independent review

POWER / PROCEDURE

- Minerva Mills (1980): limited power cannot make itself unlimited
- DISCIPLINED REVIEW textual foundation → settled precedent → actual damage → narrow remedy

CHECK / LIMIT

- VERDICT reasoned, bounded review is legitimate; feature language must not become a policy veto
- CRITICISM doctrine is judicially inferred and non-exhaustive unelected judges review elected super-majorities open-ended features can create uncertainty

FEDERAL / RIGHTS IMPACT

- Article 368 is a Constitution-created, limited power democracy includes future elections, rights, federal voice and independent review
- Minerva Mills (1980): limited power cannot make itself unlimited

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: VERDICT reasoned, bounded review is legitimate; feature language must not become a policy veto.

09

STAGE 09 — PRELIMS TRAPS AND VERIFIED PYQ CONTROL

PRELIMS TRAPS AND VERIFIED PYQ CONTROL · PRELIMS CONTROL · ARTICLE 368 · ADDITION, VARIATION OR REPEAL NO JOINT SITTING BOTH HOUSES · EXACT PROVISO + AT LEAST HALF ARTICLE 241 AND · NON-EXHAUSTIVE ORDINARY-STATUTE BOUNDARY APPLIES · NINTH SCHEDULE · REVIEWABLE AFTER CUT-OFF NOT AUTOMATICALLY INVALID

PRELIMS CONTROL → Article 368 → addition, variation or repeal no joint sitting both Houses use both → special-majority limbs President shall assent ratification → exact proviso + at least half Article → 241 and 279A are separately named basic structure → non-exhaustive ordinary-statute boundary applies → Ninth Schedule → reviewable after cut-off not automatically invalid

CONSTITUTIONAL BASIS / ARTICLE

- PRELIMS CONTROL
- Article 368 → addition, variation or repeal no joint sitting both Houses use both
- special-majority limbs President shall assent ratification → exact proviso + at least half Article

POWER / PROCEDURE

- 241 and 279A are separately named basic structure → non-exhaustive ordinary-statute boundary applies
- Ninth Schedule → reviewable after cut-off not automatically invalid
- VERIFIED PYQS

CHECK / LIMIT

- 2 Mains: 2019 Q12 and 2025 Q12
- 8 Prelims: 2018 Q5; 2019 Q45/Q47; 2020 Q13; 2022 Q13; 2023 Q34; 2024 Q66; 2025 Q58
- Official local keys: 2024 Q66 = D; 2025 Q58 = A. Earlier keys are explicitly inferred.

FEDERAL / RIGHTS IMPACT

- CURRENT TRAPS
- 131st Bill = defeated proposal
- 106th Amendment = commenced, not operational.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Official local keys: 2024 Q66 = D; 2025 Q58 = A. Earlier keys are explicitly inferred.

10

STAGE 10 — MARKS-SCALED MAINS EXECUTION: 10, 15 AND 20 MARKS

MARKS-SCALED MAINS EXECUTION · 10, 15 AND 20 MARKS · 10 MARKS · 150 WORDS THESIS · 3–4 DIMENSIONS · 2–3 EVIDENCE UNITS · 15 MARKS · 250 WORDS PROCEDURE AND SUBSTANTIVE LIMIT

10 MARKS / 150 WORDS thesis → 3–4 dimensions → 2–3 evidence units → qualification

15 MARKS / 250 WORDS procedure and substantive limit → 4–6 Articles/cases → application → 20 MARKS / 250-300 WORDS design → chronology → applications → current evidence criticism/defence → EXECUTION RULE claim → named evidence → analysis → qualification compress by demand; do not

CONSTITUTIONAL BASIS / ARTICLE

- 10 MARKS / 150 WORDS thesis → 3–4 dimensions → 2–3 evidence units → qualification → verdict
- 15 MARKS / 250 WORDS procedure and substantive limit → 4–6 Articles/cases → application → verdict

POWER / PROCEDURE

- 20 MARKS / 250–300 WORDS design → chronology → applications → current evidence criticism/defence → nuanced verdict
- EXECUTION RULE claim → named evidence → analysis → qualification compress by demand; do not dump every case or basic feature

CHECK / LIMIT

- FINAL LINE
- Article 368 permits transformation within constitutional identity.

FEDERAL / RIGHTS IMPACT

- Parliament may amend, but cannot destroy or replace the Constitution.
- 10 MARKS / 150 WORDS thesis → 3–4 dimensions → 2–3 evidence units → qualification → verdict

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: EXECUTION RULE claim → named evidence → analysis → qualification compress by demand; do not dump every case or basic feature.

11

STAGE 11 — CURRENT AMENDMENT-STATUS CONTROL: PROPOSAL, COMMENCEMENT AND OPERATION

CURRENT AMENDMENT-STATUS CONTROL · PROPOSAL, COMMENCEMENT AND OPERATION · ANJUM KADARI (2024) INSC 831 · NO FREE-STANDING BASIC-STRUCTURE ATTACK ON ORDINARY LAW · 131ST AMENDMENT BILL 2026 · DEFEATED PROPOSAL; NOT LAW OR PRECEDENT · S.O. 1922(E), 16 APR 2026 · 106TH AMENDMENT COMMENCED

ANJUM KADARI (2024) INSC 831 → no free-standing basic-structure attack on ordinary law → 131ST AMENDMENT BILL 2026 → defeated proposal; not law or precedent → S.O. 1922(E), 16 APR 2026 → 106TH AMENDMENT commenced → ARTICLE 334A → operation awaits specified census publication plus delimitation → RULE: enactment, commencement and operational effect are distinct legal events.

CONSTITUTIONAL BASIS / ARTICLE

- ANJUM KADARI (2024) INSC 831 → no free-standing basic-structure attack on ordinary law
- 131ST AMENDMENT BILL 2026 → defeated proposal; not law or precedent
- S.O. 1922(E), 16 APR 2026 → 106TH AMENDMENT commenced

POWER / PROCEDURE

- ARTICLE 334A → operation awaits specified census publication plus delimitation
- RULE: enactment, commencement and operational effect are distinct legal events.
- LEGAL/SOURCE LIMIT: Basic structure limits constitutional amendments, not ordinary statutes as a free-standing test.

CHECK / LIMIT

- The 131st Bill was defeated
- the 106th Amendment has commenced, while
- Article 334A still separates commencement from operation.

FEDERAL / RIGHTS IMPACT

- ARTICLE 334A → operation awaits specified census publication plus delimitation

MECHANISM / VERDICT — RULE: enactment, commencement and operational effect are distinct legal events.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: enactment, commencement and operational effect are distinct legal events.

E

EXTRA — SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT · 17. AMENDMENT VERSUS REPLACEMENT · 18. COMPARATIVE UNCONSTITUTIONAL-CONSTITUTIONAL-AMENDMENT DOCTRINE · 19. STATE RATIFICATION AS ASYMMETRIC FEDERALISM · 20. INSTITUTIONAL RESTRAINT AFTER ANJUM KADARI (2024) · (ANALYSIS) AN "AMENDMENT" PRESUPPOSES CONTINUITY OF THE CONSTITUTION BEFORE · IF THE OLD IDENTITY DISAPPEARS, THE ACT RESEMBLES REPLACEMENT · (FACT) JUSTICE H.R. KHANNA'S KESAVANANDA BHARATI (1973) REASONING EMPHASISED

OPTIONAL DOCTRINE / CASE

- 17. Amendment versus replacement
- 18. Comparative unconstitutional-constitutional-amendment doctrine
- 19. State ratification as asymmetric federalism
- 20. Institutional restraint after Anjum Kadari (2024)

ADVANCED LIMIT

- (ANALYSIS) An "amendment" presupposes continuity of the Constitution before and after change.
- If the old identity disappears, the act resembles replacement or constituent founding rather than amendment.
- (FACT) Justice H.R. Khanna's Kesavananda Bharati (1973) reasoning emphasised survival of the old Constitution without loss of identity.
- (ANALYSIS) This supplies the doctrine's conceptual core: Article 368 can revise institutions, powers and

COMPARATIVE NUANCE

- rights, but cannot use a constituted power to abolish the framework that created it.
- (LIMIT) "Identity" is not a licence to constitutionalise every historical practice.
- The protected identity must be derived from the Constitution's text, structure, history and settled precedent.
- (FACT) Germany's Basic Law contains an express eternity clause protecting specified fundamentals from amendment.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels